



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: SiteLine (7555 Goreway) Inc. v Frimpong, 2025 ONLTB 95796

Date: 2025-12-18

File Number: LTB-L-076527-25

In the matter of: 224, 7555 GOREWAY DR
MISSISSAUGA ON L4T3M9

Between: SiteLine (7555 Goreway) Inc. Landlord

And

Anthony Frimpong Tenants
Beatrice Frimpong

SiteLine (7555 Goreway) Inc. (the 'Landlord') applied for an order to terminate the tenancy and evict Anthony Frimpong and Beatrice Frimpong (the 'Tenants') because the Tenants, another occupant of the rental unit or someone the Tenants permitted in the residential complex has substantially interfered with the reasonable enjoyment or lawful right, privilege or interest of the Landlord or another Tenant.

The Landlord also claimed compensation for each day the Tenants remained in the unit after the termination date.

This application was heard by videoconference on December 9, 2025. Only the Landlord's Agent, Leeann Mathura, and the Landlord's Legal Representative, Sylwia McArthur, attended the hearing.

As of 10:46 a.m. the Tenants were not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

Determinations:

1. As explained below, the Landlord has proven on a balance of probabilities the grounds for termination of the tenancy. However, I find that it would not be unfair to grant relief from eviction, subject to the conditions set out below.
2. The Tenants were in possession of the rental unit on the date the application was filed.
3. On August 11, 2025, the Landlord gave the Tenants an N5 notice of termination, deemed served on August 6, 2025, with a termination date of September 13, 2025 (the 'N5 Notice').

The N5 Notice alleges that the Tenants failed to provide the Landlord with proof of tenant insurance as required by the lease agreement.

4. The Tenants did not provide the Landlord with proof of valid tenant insurance within seven days after receiving the N5 notice of termination. Therefore, the Tenants did not void the N5 notice of termination in accordance with s.64(3) of the *Residential Tenancies Act, 2006* (Act).
5. The Landlord's Agent testified that, according to the lease, the Tenants are required to have tenant insurance. A copy of the lease was tendered as evidence. Section 14, subsection (c) of the lease states the following:

"The Tenant further agrees:

...

(c) To place with the Management Office a certificate of insurance showing that the Tenant has Fire Insurance and Liability on the said apartment."

6. The Landlord's Agent testified that letters were sent to the Tenants on June 3, 13 and 23, 2025 asking the Tenants to provide proof of their insurance. Copies of the letters were tendered as evidence. The Tenants did not respond to the letters and did not provide proof of insurance to the Landlord.

Analysis

7. The Divisional Court held in *Stanbar Properties v. Rooke* [2005] O.J. No. 6363 that the tenant's failure to provide proof of insurance coverage was a breach of consensual provisions of the tenancy agreement and that the tenant's refusals substantially interfered with the landlord's lawful rights acquired by it as a result of the agreement.

8. Based on the uncontested evidence of the Landlord, I find, on a balance of probabilities, that the Tenants are required by the lease agreement to provide the Landlord with proof of insurance and that the Tenants have not done so. As a result, the Tenants have substantially interfered with a lawful right, privilege or interest of the Landlord.
9. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.

Relief from Eviction / Section 83 of the Act

10. The Landlord's Legal Representative requested a conditional order requiring the Tenants to provide proof of insurance within 30 days.
11. The Tenants did not attend the hearing to dispute the claim against them or to request a different outcome. I find the conditional order requested by the Landlord's Legal Representative to be reasonable in the circumstances as it will give the Tenants an opportunity to rectify the insurance issue and maintain their housing.
12. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the Act, and find that it would not be unfair to grant relief from eviction subject to the conditions set out in this order pursuant to subsection 83(1)(a) and 204(1) of the Act.

It is ordered that:

1. The tenancy between the Landlord and the Tenants continues if the Tenants meet the conditions set out below.
2. The Tenants shall obtain tenant's insurance in accordance with the provisions of their lease and provide proof of the insurance policy to the Landlord no later than January 18, 2026.
3. If the Tenants fail to comply with the conditions set out in paragraph 2 of this order, the Landlord may apply under section 78 of the Act for an order terminating the tenancy and evicting the Tenants. The Landlord must make the application within 30 days of a breach of a condition. This application is made to the LTB without notice to the Tenants.
4. The Tenants shall pay to the Landlord \$186.00 for the cost of filing the application. If the Tenants do not pay the Landlord this amount on or before December 29, 2025, the Tenants will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Rachel Gibbons

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.